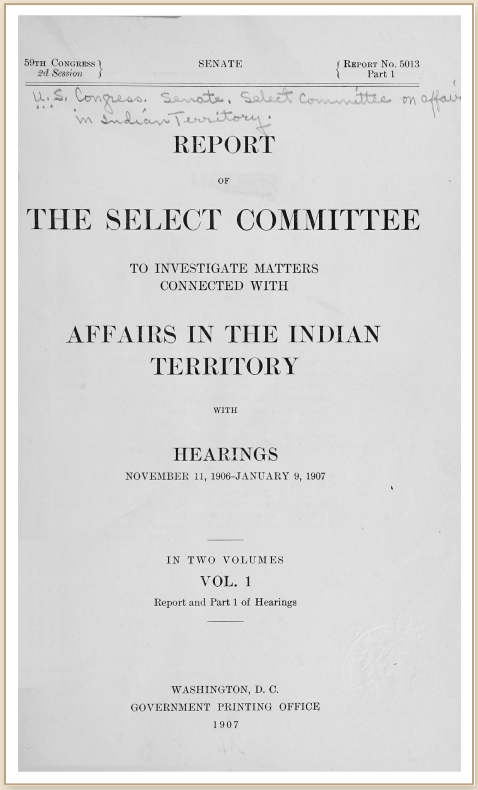
IN HIS OWN WORDS

> *“I never consented to any agreement to divide up my land, and I don’t want it divided up. I want the old treaty.”*

— Redbird Smith, Cherokee (Keetoowah) leader, testimony to a US Senate select committee, Muskogee, November 1906



59TH CONGRESS } SENATE { REPORT No. 5013
2d Session } { Part 1

U.S. Congress. Senate. Select Committee on affairs in Indian Territory.

REPORT

OF

THE SELECT COMMITTEE

TO INVESTIGATE MATTERS
CONNECTED WITH

AFFAIRS IN THE INDIAN TERRITORY

WITH

HEARINGS

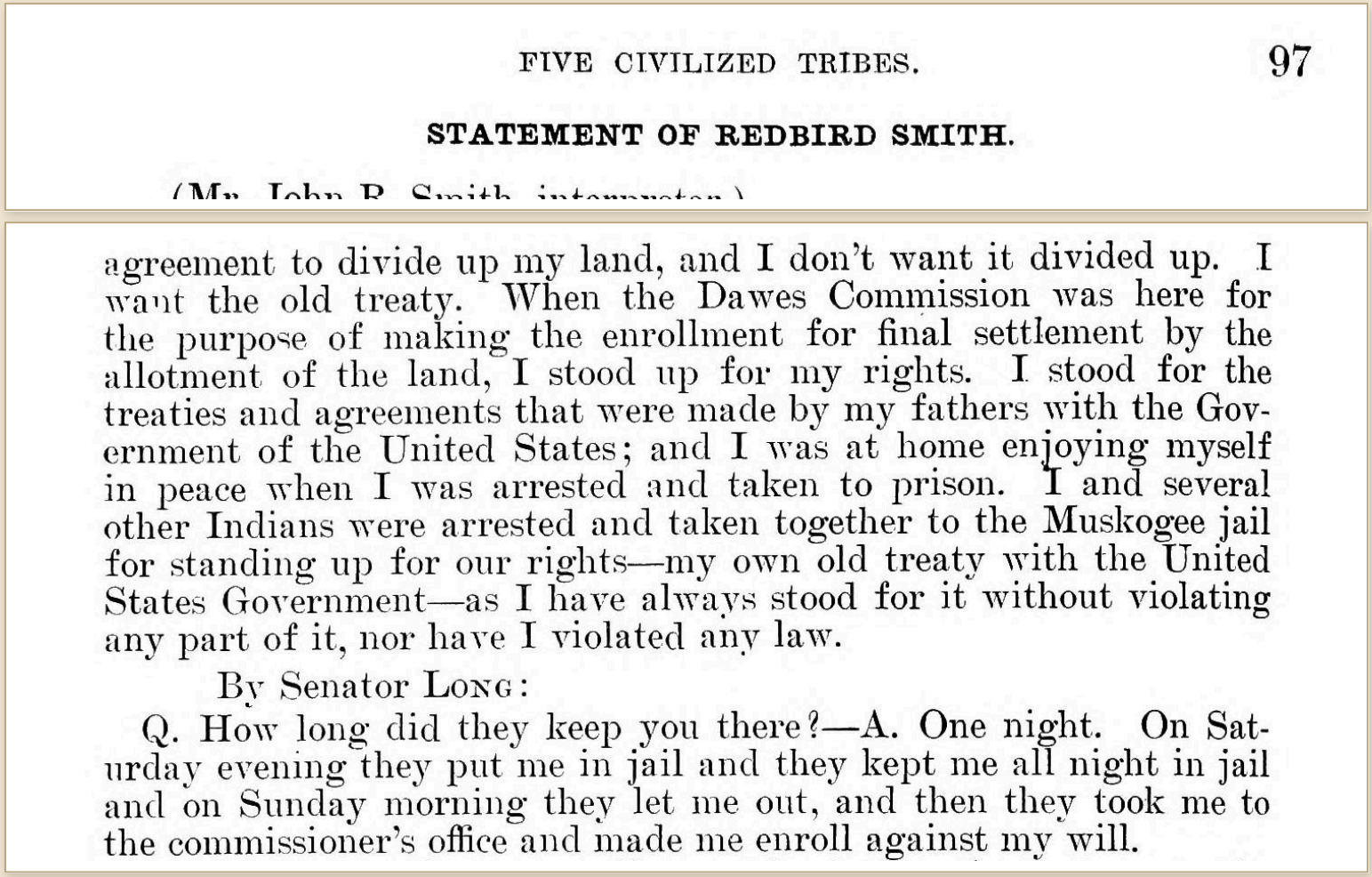
NOVEMBER 11, 1906-JANUARY 9, 1907

IN TWO VOLUMES

VOL. 1

Report and Part 1 of Hearings

WASHINGTON, D. C.
GOVERNMENT PRINTING OFFICE
1907



FIVE CIVILIZED TRIBES. 97

STATEMENT OF REDBIRD SMITH.

(Mr. John B. Smith, interpreter.)

agreement to divide up my land, and I don't want it divided up. I want the old treaty. When the Dawes Commission was here for the purpose of making the enrollment for final settlement by the allotment of the land, I stood up for my rights. I stood for the treaties and agreements that were made by my fathers with the Government of the United States; and I was at home enjoying myself in peace when I was arrested and taken to prison. I and several other Indians were arrested and taken together to the Muskogee jail for standing up for our rights—my own old treaty with the United States Government—as I have always stood for it without violating any part of it, nor have I violated any law.

By Senator LONG:

Q. How long did they keep you there?—A. One night. On Saturday evening they put me in jail and they kept me all night in jail and on Sunday morning they let me out, and then they took me to the commissioner's office and made me enroll against my will.

Testimony of Redbird Smith

November 1906 to January 1907 · Senate Report 5013, vol. 1, pp. 97–98 · Reproduction

Arrested for refusing to enrol, he told the committee he was ‘made to enroll against my will’. The committee’s answer, on the next page: take your allotment, or ‘you will soon find yourself without land altogether’.